

Performance Work Statement (PWS)

Landscape and Grounds Maintenance

VA Central California Health Care System

1. SCOPE OF WORK

- 1.1. This is a non-personnel services contract to provide for comprehensive landscaping and grounds maintenance at the Fresno VA. The scope includes tree trimming, mulching, weed abatement, application of fertilizer, mowing, edging, clipping, pruning, debris removal, installation of sod/turf, planting, and irrigation verification and repair for the Fresno VA Hospital. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the contractor who, in turn is responsible to the Government. Contractor will provide the prescribed Maintenance for approximately Twenty (20) acre at the Fresno VA, 2615 East Clinton Avenue Fresno, CA 93703 (site map to be furnished). Contractor will provide all personnel, supplies, supervision, tools, equipment, transportation and other items and non-personal services necessary to complete all aspects of the scope of work.
- 1.2. Prior to commencing any work, Contractor will submit a service schedule of operations via email to the COR for approval. The service schedule can be subject to change in order that Contractor operations do not conflict or otherwise disrupt normal operations of the government. The service schedule can be subject to change if weather dictates that services cannot be provided as scheduled. In the event of a schedule change due to possible disruptions of normal government operations or inclement weather, Contractor will submit a revised service schedule via email to the COR for approval.
- 1.3. **Mulching:** In Year 1, the contractor shall replace all wood mulch, unless otherwise agreed to by the COR. The contractor shall maintain the mulch in like new condition throughout the year replacing or adding when necessary. Contractor shall maintain and replace existing mulch as necessary during subsequent service years. Mulch shall be commercial grade shredded hardwood bark, or equivalent. It shall be free of sticks, stones, clods, or other foreign materials. A sample of proposed mulch and chips shall be submitted to and approved by the COR prior to use. All areas to be mulched shall be raked, debris removed, edges reestablished, and any excessive mulch buildup worked into existing soil or removed, at the discretion of the COR, prior to mulch application. For areas of landscaping that use a material other than mulch, such as xeriscape areas of landscaping and crushed rock or stone, the Contractor shall maintain and replace this material as necessary to maintain an evenly distributed appearance. Replacement fill shall be free of sticks, or other foreign materials and shall be of exact match to the existing unless authorized by the COR. A sample of the material shall be submitted to and approved by the COR prior to use. All areas utilizing this fill shall be raked, debris removed, and edges established.

- 1.4. **Weed Abatement:** Contractor shall perform comprehensive weed abatement. All spraying will be conducted in a safe manner as not to expose chemicals to other areas of the Fresno VA facility. All chemicals will be an approved mix of selective herbicides appropriate for the area being sprayed. All area sidewalks, parking lots, roadways, and improved and unimproved landscape/grounds areas are to be free of weeds and unwanted growth. Weeds shall be controlled mechanically or chemically as needed upon appearance. Herbicides must be approved by the Fresno VA Safety Service prior to use. Contractor must fully comply with all EPA and OSHA requirements related to the storage, application, and disposal of herbicides. The contractor shall maintain and provide all training and certification records for staff involved in weed abatement.
- 1.4.1. Pre-emergence crabgrass control chemicals shall be applied to the grass prior to the growing season. The quantity of pre-emergence control utilized shall never be less than that which is recommended by the pre-emergence control manufacturer. Pre-emergent will be applied at the rate of 4.26pounds per 1000sf to all turf areas in the spring of each year to control turf weeds.
- 1.4.2. Chemical controls for broad-leaf weeds shall be applied as needed. Over-seeding/ reseeding of blue grass or fescue varieties shall be done to maintain grass coverage and to fill voids created by elimination of weeds.
- 1.4.3. Remove weeds from all parking lots, curbs, roadways, planter boxes, property lines, fence lines, and around all permanent structures on the entire grounds at least once a month. Free growing trees small trees (under 3" dia.) will be removed with agreement of COR.
- 1.4.4. When chemical methods are used to remove weeds or unwanted vegetation, the contractor shall assure the compatibility of the chemicals with existing vegetation and ensure that only the weeds shall be affected by the chemicals. All weeds and unwanted vegetation killed by mechanical means, or chemical treatment shall be picked up and disposed of and shall not be left on the ground.
- 1.5. **Tree Trimming:** Yearly Tree trimming, and thinning shall reduce the density of live branches towards developing the natural branching structure. Trees shall be pruned by the Contractor to remove dead or diseased foliage or branches to help control or direct growth, increase quality, and to add structural strength to the trees and shrubs. Thinning shall result in an even distribution of branches on individual limbs and throughout the crown, to provide free air circulation through the remaining limbs and branches. Not more than 25 percent of the crown should be removed annually. Tree maintenance shall be performed only by certified arborists. Operations shall comply with applicable Occupational Safety and Health Administration (OSHA) standards, ANSI Z133.1, as well as State and local regulations. Tree branches shall be removed in a manner not to cause damage to other parts of the tree, other plants, or property. Branches too large to support with one hand shall be precut to avoid splitting of the wood or tearing of the bark. Where necessary, ropes or other equipment shall be used to lower large branches or portions of branches to the ground. All fence lines and walkways will be cleanly trimmed and consistently maintained throughout the growing season.

- 1.5.1. An arborist generated tree trimming plan shall be provided within the first 90 days of the contract and shall establish the general trimming plan for all 5 service years. In addition to recommendations made by the arborist for comprehensive tree trimming and its frequency, routine maintenance trimming shall be performed as needed to maintain all trees free of dead limbs, foliage or hazards and to be kept in a clean, orderly and aesthetically pleasing condition throughout the service contract term.
 - 1.5.2. Contractor shall coordinate the closure of parking, sidewalks and streets as necessary to perform tree trimming when required. The VA shall be provided with a minimum of 1 week notice of planned closure for routine work requiring closure. All non-emergent tree trimming shall be performed on the weekends or otherwise outside of normal hospital operating hours.
- 1.6. **Fertilization:** Contractor shall apply fertilizer in accordance with standard landscaping practice to maintain the health and appearance of all landscaping to the highest standard. Apply in accordance with the minimum maintenance procedures attached to this document as **Attachment 1**. Fertilizer containing 1 pound of actual nitrogen per 1000sf will be applied 4 times each year to all turf areas. Contractor shall meet all EPA and OSHA requirements related to the storage, application, and disposal of chemicals. Fertilizers must be approved by the Fresno VA Safety Service prior to use. The contractor shall maintain and provide all training and certification records for staff involved in fertilizer application at the request of the VA.
 - 1.6.1. Fertilize all lawns four times during each growing season using good time-release fertilizer such as Nitro Best or equivalent. The actual dates chosen for fertilization will be determined by mutual agreement of the Landscape Contractor and the COR. Fertilization shall not be performed between November 15 and January 31.
 - 1.6.2. Apply fertilizer to all other vegetation in both developed and undeveloped area according to the specific needs of each tree or shrub. Deep root feeding is not required. Trees in undeveloped areas that are not fully established may be fertilized by using fertilizer stakes such as "Job's Tree Stakes"
 - 1.6.3. The contractor shall utilize the type and quantity of fertilizer that is specifically formulated for the trees/shrubs for the time of the year applied. The amount of fertilizer used shall never be less than that which is recommended by the fertilizer manufacturer.
 - 1.6.4. Contractor shall notify COR prior to fertilizing. COR will be allowed to verify type and quantity of fertilizer used.
- 1.7. **Turf installation and maintenance:** All turf areas will be maintained free of weeds and to the highest aesthetic standards. Newly installed turf shall be sod. Overseeding of existing turf shall be performed as needed to maintain the health and visual appeal of the turf. Existing turf areas not meeting the aesthetic standards shall be replaced with sod. The contractor shall install new sod in undeveloped areas when directed by the VA. Sod installation in undeveloped areas shall be a reimbursable cost to the contractor. Cost shall be provided and approved prior to installation.

- 1.8. **Planting:** The contractor shall replace any dead shrub, bush, flower, groundcover, or tree with a like sized replacement when the health of the existing plant cannot be restored or the plant has died.
- 1.9. **Mowing, edging, trimming, pruning, shaping:** shall be performed in accordance with the minimum maintenance procedures in Appendix A.
 - 1.9.1. Mowing: Mow all turf areas weekly. Turf will be mowed with rotary recycling mowers or walk behind bagging mowers to a height not less than 2.5" and not more than 4", unless otherwise determined by the VA based on turf type and condition. All grass clippings will be blown or swept on the same day the mowing operation is completed. Turf will be aerated as needed.
 - 1.9.2. Edging: edge all curbs, driveways, sidewalks and borders to maintain a well-defined edge every time the surrounding turf is mowed. All edging debris will be blown or swept on the same day the edging operation is completed.
 - 1.9.3. String Trimming: string trim turf around trees, tree wells, fences, and other stationary objects as needed to maintain an even and smooth surface. String trimming of non-turf areas is required to eliminate the presence of weeds, pending other weed abatement strategies being implemented. All string trimming debris will be blown or swept on the same day the string trimming operation is complete.
 - 1.9.4. Shrub/Hedge/Groundcover Pruning: All shrubs, hedges and groundcover will be neatly pruned as needed to:
 - 1.9.4.1. Maintain a healthy, attractive appearance
 - 1.9.4.2. Control growth within designated planter
 - 1.9.4.3. Maintain safe pedestrian and vehicular clearance and visibilityAll pruning debris and clippings will be removed and cleaned up on the same day it is generated.
- 1.10. **Irrigation:** All irrigation systems within the Fresno VA Hospital will be activated and checked and adjusted monthly or as needed to ensure that all irrigation systems are properly working. A thorough spring check will take place at the start of the growing season to validate irrigation controller control valves, solenoids, main lines, lateral lines, sprinkler heads and nozzles for any deficiencies. Repairs due to vandalism will be reported to the VA COR. Any repairs needed because of contractors' maintenance work or negligence will be made at the contractor's expense. All turf, shrubs, and trees will be monitored weekly by the contractor for any sign of stress. Signs of turf or plant stress will be reported to the VA and addressed by the contractor. Contractor shall provide written plan of action to remediate.
 - 1.10.1. Undeveloped areas without irrigation shall be irrigated when requested by the VA. Newly installed irrigation to undeveloped areas is a reimbursable cost to the contractor. Cost shall be provided and approved prior to installation. Repairs to existing irrigation systems are not reimbursable and shall be covered under the routine services of the contract.
- 1.11. **Debris removal:** each week throughout the year on regular service day(s) the entire landscape area and all parking and sidewalk areas will be cleared of any debris such as leaves, limbs, trash and other loose materials

and disposed of. Contractor may utilize VA waste collection dumpsters for routine disposal, however tree trimming, and shrub trimming/removal debris shall be disposed of by the contractor off site.

1.12. SPECIAL SITE-SPECIFIC WORK REQUIREMENTS

1.12.1. The contractor shall provide enhanced planting year-round at 4 focal points of the medical center. As the entrance to the medical center, these areas shall be premium foliage and flower quality and quantity year-round. Planting shall be completed as needed to maintain color during all seasons. Contractor shall provide a written plan for these areas and shall amend the plan when necessary to meet the quality standards. The Plan shall include names and types of flowers to be planted and shall be approved by the COR. YEAR-ROUND COLOR IN THESE AREAS IS REQUIRED. Refer to **Attachment 2** for photos samples of the quality expectations to be met. These focal point locations are:

1.12.1.1. Clinton Ave Entrance (approximately 500 sf),

1.12.1.2. Fresno St. Entrance (approximately 500 sf)

1.12.1.3. Hospital Main Entrance flower beds (approximately 800 sf)

1.12.1.4. Front Entrance Walkway planters (approximately 800 sf)

1.12.2. Power wash Front entrance in front of Building 1 and Entrance to Emergency Department weekly, before operating hours (0800) or on weekend to remove stains, dirt, etc. Also remove cobwebs from the overhead canopies.

1.13. Reimbursable expansion of undeveloped area (sod and irrigation)

The government will fund the purchase order associated with the contract an additional sum of \$15,000.00 for reimbursement of contractor costs for work associated with sod and irrigation expansion in undeveloped areas.

1.13.1. **Labor:** Contractor shall submit with their bid proposal a schedule of labor rates that will be charged for the expansion of irrigation lines and installation of sod to undeveloped areas. The labor rates shall be submitted for the base year and each option year. The submitted rates shall remain unchanged throughout the term of the contract.

1.13.2. **Materials:** The contractor shall provide all materials associated with repair work at the Contractor's cost plus a reasonable mark-up for overhead, profit and handling. The contractor may be requested by the COR to provide evidence documenting the contractors' procurement costs associated with materials. Contractor shall submit a schedule with their bid proposal for the base year and each option year, listing the amount(s) or percentage(s) associated with materials mark-up. The submitted mark-up for materials shall remain unchanged throughout the term of the contract.

1.13.3. **Contractor Reimbursement:** Contractor shall be reimbursed for T&M work by submitting an invoice to the COR for review and approval prior to invoicing through Tungsten. The government shall approve for payment submission or reject the invoice within 14 calendar days.

1.13.4. The contractor shall not perform any work not included in the PWS or beyond the allotment made for reimbursement. Contractor will not be compensated for any additional costs without proper authority. Contractor shall obtain a written approval or change order with authorization and notification of available funds. Only the Contracting Officer has the authority to approve change orders. The contractor shall not assume that an increase to the allotted reimbursable funds will be

approved or available. The contract shall not invoice against the reimbursable funds without approval of the COR or CO. The contractor is responsible for ensuring the reimbursable fund allocation is not exceeded.

- 1.14. **Reporting:** A written report shall be submitted with the monthly billing describing all work completed for the month and include any issues that need to be addressed. A daily grounds worksheet checklist shall be completed each day work is performed. These shall be provided no less frequently than monthly with the monthly billing statement or more frequently is requested by the VA. Refer to **Attachment 4** for a sample daily worksheet.

2. APPLICABLE DOCUMENTS

Required	Due Date
Contractor's Quality Control Plan (QCP)	14 days post award.
Annual Work Schedule	Shall be Submitted with Proposal.
Primary/Alternate POCs	14 days post award
Chemical safety plan (Herbicide/Fertilizer/Pre-emergent)	14 days post award
Mulching Plan	Shall be Submitted with Proposal.
Tree Trimming Plan	90 days post award

3. CONTRACTOR QUALIFICATIONS:

- 3.1. The contractor shall possess, at a minimum, the following performance qualifications:
- 3.1.1. Ensure that the contractor and all employees working on-site have taken an OSHA Certified 10-hour construction safety course.
 - 3.1.2. Maintain certification required to apply herbicides, fertilizer and pre-emergent, as necessary.
 - 3.1.3. Contractor must maintain all OSHA required plans and procedures and documentation for safe work practice and employee safety. Employee training records must be available and provided at the request of the VA

4. PLACE OF PERFORMANCE: Fresno VA Medical Center - 2615 E. Clinton Ave. Fresno, CA 93703

5. PERIOD OF PERFORMANCE: The period of Performance is for (1) base year and (4) option years.

6. HOURS OF OPERATION & HOLIDAYS:

- 6.1. Hours of Operation. The contractor shall conduct work to minimize impact to hospital operations. Work may be done on the weekends. Work done during the work week during normal business hours (between the hours of 8:00 am to 4:30 pm) shall be performed in such a way to minimize affect to patient care. Noisy work shall not be done during business hours. Work blocking sidewalks or parking shall not be done during business hours. Work shall not be performed on federal holidays or when the Government facility is closed due to local or national emergencies administrative closing, unless authorized by the COR.
- 6.2. Legal holidays recognized by the Federal Government in accordance with 5 U.S.C. 6103, Executive Order 11582 and Public Law 94-97 or any other by the President of the United States to be a national holiday, the following national holidays are observed and for the purpose of this contract is defined as "Legal Federal, official holidays" as follows:
 - 6.2.1. Recognized Holidays

New Year's Day	January 1
Martin Luther King Jr.'s Birthday	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19
Independence Day	July 4
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veteran's Day	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Day	December 25

7. GENERAL REQUIREMENTS:

- 7.1. Contractor personnel shall wear uniforms which will be not less than a shirt and pants, not provided by the Government, identifying them as Contractor employees. The coloring or design of the item selected should be such that identifies personnel easily and quickly for reasons of safety and personal protection.
- 7.2. Contractor shall be responsible for the protection of all buildings elements and equipment that may be subjected to damage while performing this contract. Contractor shall replace all damaged items with exactly matching item or a like item at the VACCHCS discretion.

8. GENERAL INFORMATION:

- 8.1. Contract Manager. The contractor shall provide a contract manager who shall be responsible for the work. The name of this person, and an alternate(s) who shall act for the contractor when the manager is absent, shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all matters relating to this contract.
- 8.2. The contract manager or alternate shall be available all day on each day the contractor is on site to meet with COR to discuss problem areas. The contract manager shall provide an accessible contract number.
- 8.3. The contractor shall keep its employees trained and certified at all time during contract period. The contractor shall ensure all employee certifications are submitted to CO and COR for proper recording of training no later

than 14 day after award of contract. VA has the right to inspect and request verification of licenses and certificates of during the contract period. Contractor shall update list of any changes with personnel or certificates/license and submit to COR and CO no later than 5 days of occurrence.

- 8.4. Remove of Contractor's Employees. The contractor shall utilize only experienced, responsible, and capable employees in the performance of this contract. The CO may require that the contractor remove from the Government job any employee that endangers persons, property, environment, EEO policy, Hostile work environment, or federal workplace policy or violates the standards noted in this PWS.
- 8.5. Government Furnish Equipment. This PWS does not have any government furnished equipment. Contractor shall not use any government owned equipment, material, supplies, or tools. Contractor shall furnish all requirements. The government has the option to terminate the contract in the event the contractor uses government equipment.
- 8.6. Landscape improvements made by VA. The VA may during the contract term replace/change landscaping plant materials in already designated planting areas or expand new landscape to currently unimproved areas. The contractor will assume the maintenance of the replaced landscape materials and expanded landscape areas at no additional cost to the government.

9. SITE INVESTIGATION AND CONDITIONS AFFECTING THE WORK:

- 9.1. The Contractor acknowledges that it has taken steps reasonably necessary to ascertain the nature and location of the work, and that it has investigated and satisfied itself as to the general and local conditions which can affect the work or its cost, including but not limited to (1) conditions bearing upon transportation, disposal, handling, and storage of materials; (2) the availability of labor, water, electric power, and roads; (3) uncertainties of weather, or similar physical conditions at the site; (4) the conformation and condition of the ground; and (5) the character of equipment and facilities needed preliminary to and during work performance. The Contractor also acknowledges that it has satisfied itself as to the character, quality, and quantity of surface and subsurface materials or obstacles to be encountered insofar as this information is reasonably ascertainable from an inspection of the, including all exploratory work done by the Government, as well as from the drawings and specifications made a part of this contract. Any failure of the Contractor to take the actions described and acknowledged in this paragraph will not relieve the Contractor from responsibility for estimating properly the difficulty and cost of successfully performing the work, or for proceeding to successfully perform the work without additional expense to the Government.
- 9.2. The Government assumes no responsibility for any conclusions or interpretations made by the Contractor based on the information made available by the Government. Nor does the Government assume responsibility for any understanding reached or representation made concerning conditions which can affect the work by any of its officers or agents before the execution of this contract, unless that understanding or representation is expressly stated in this contract.

10. QUALITY CONTROL PROGRAM: The Contractor shall develop and maintain an effective Quality Control Program to ensure services are performed in accordance with this PWS. The Quality Control Program (QCP) will be delivered to the COR within 14 calendar days of the contract award. After acceptance of the QCP, the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system. The Contractor shall develop

and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract.

11. QUALITY ASSURANCE SURVEILLANCE PLAN:

The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan and PWS. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. Failure to correct any adverse findings or failure to deliver all services described in this contract may result in non-acceptance of the services by the Government. Failure to meet the standards of this performance work statement may result in a deduction of price equal to the value of the unperformed or poorly performed services. Failure to provide services in accordance with this contract could also result in termination of the contract for cause and/or adversely impact the Contractor's ability to be selected for future contracts as documented. Government verification inspections of services shall not constitute acceptance nor replace the contractor inspection or in any way relieve the contractor of any responsibility to take all actions necessary to assure highest quality of service rendered. The Quality Assurance Surveillance Plan (QASP) is included in **Attachment 3**.

12. CONTRACTING OFFICER REPRESENTATIVE:

- 12.1. The Contracting Officer Representative (COR) will be appointed by the Contracting Officer who will provide technical guidance and clarifications to the Contractor. It shall be noted that interpretation of contractual terms and/or financial matters is the responsibility of the Contracting Officer.
- 12.2. The COR will monitor the Contractor's performance to assure that services provided and the standards of performance are met in accordance with this Performance Work Statement and the QAQC Plan. In accordance with FAR 52.212-4 (a) "Inspection/Acceptance" the Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of non-conforming supplies or re-work of non-conforming services at no additional cost to the Government.

13. STANDARD OF CONDUCT: Contractor, subcontractors, and contractor's personnel must adhere to the contract and shall conduct themselves according to VA conduct standards.

- 13.1. Neglect of Duties. Contractor, subcontractors, and personnel neglect of duties shall not be condoned. This shall include but not be limited to sleeping on duty, unreasonable delay or failures to carry out assigned tasks, conducting personal affairs during duty hours, and refusing to render assistance or cooperate in upholding the integrity of the work site security. This can result in the termination of the contract or removal of the employee(s), which will be the decision of the VA. The CO shall inform the contractor in writing of actions.
- 13.2. Disorderly Conduct. The use of abusive or offensive language, quarreling, intimidation by words, actions, or fighting shall not be condoned. Also included is participation in disruptive activities which interfere with normal and efficient government operations. This can result in the termination of the contract or removal of the employee(s), which will be the decision of the VA. The CO shall inform the contractor in writing of actions.

- 13.3. Driving. Contractor and Contractor's employees shall obey all speed limits and traffic signs. Disobeying traffic regulation could result in court citations, which include monetary fines. Continued violations could result in being restricted from driving on VA facilities.
- 13.4. Parking. Contractor vehicles will be parked only in lots or areas designated by the COR, if available. The Government will not be liable for any lost, stolen, or damage vehicles or items. Contractor shall obey all distances from critical areas which are deemed by the VA or code. Continued violations could result in being restricted from driving on VA facilities.
- 13.5. Cellular Phone/Radio Use: Cellular phones and two-way radios are not to be used in emergency rooms, surgical and recovery suites, and within six feet of any medical equipment.
- 13.6. Smoking. Smoking is prohibited on VA property. Smoking on VA property could result in citations, which include monetary fines. Continued violations could result in removal from VA facilities.
- 13.7. Intoxicants. The Contractor shall not allow any employee to possess, sell, consume, or be under the influence of intoxicants, drugs, or substances that produce similar effects. The use of illegal drugs is prohibited on Federal property. Violators will be prosecuted.
- 13.8. Posted Signs: The Contractor shall comply will all posted signs on VA property.
- 13.9. Criminal Actions. Contractor, subcontractor, or contractor's employees may be sanction for criminal actions, but not limited to the following:
 - 13.9.1. Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records or concealment of material facts by willful omission from official documents or records.
 - 13.9.2. Unauthorized use of Government property, theft, vandalism, or immoral conduct.
 - 13.9.3. Unethical or improper use of official authority or credentials.
- 13.10. Removal of Personnel. The Government reserves the right to direct the Contractor to remove any employee from the work site for failure to comply with the standards of conduct or for safety/security violations.

14. SECURITY:

- 14.1. Security Badge: Contractor and contractor's employees shall obtain a flash badge / temporary badge from dispatch, VA police on arrival to any campus. The VA Issued Security badge shall be worn on the upper torso and be visible at all times.
- 14.2. Contractor's Badge: Contractor, Subcontractors, employees, and representatives shall have a company badge visible at all time. Contractor's badge shall be visible at all times.
- 14.3. Physical Security: The contractor shall be responsible for safeguarding their equipment while on government property government. Additionally, the contractor shall be responsible for any government equipment, information and property provided for contractor use. Contractor will NOT be provided a staging area for storage of tools, equipment, material, supplies, and other items. The Government will not be responsible for damage or loss of contractor's property. Contractor is responsible to safeguard its property.
- 14.4. OI&T Security: Office of Information and Technology (OI&T) certification and accreditation requirements do not apply for this service contract and therefore a Security Accreditation Package is not required. At no time will the vendor be in contact or have access to VA sensitive information, OI&T systems, or the VA OI&T network.

15. SAFETY:

- 15.1. In performance of this contract, the Contractor shall take such safety precautions as the Contractor Officer or his/her designee may determine to be reasonably necessary to protect both the lives and health of the occupants of the building and property. The Contractor Officer or his/her designee will notify the Contractor of any non-compliance. The Contractor shall, after receipt of such notice, immediately correct the condition to which attention has been directed.
- 15.2. The Contractor shall provide all necessary Personal protective Equipment (PPE) and attire to personnel and require employees to use it during the performance of their duties as necessary. Employees shall be trained on the use and proper maintenance of PPE. The contractor shall conform to all regulations, federal and local OSHA standards.
- 15.3. Supervision. The contractor shall arrange for satisfactory supervision of the contract work. The Contractor or his designee shall be available at all times, when the contract work is in progress, to receive notices, reports or requires from the Contracting Officer or his representative.

16. INVOICING: Contractor shall invoice in monthly increments or as established by the Contracting Officer in arrears for work performed. Invoices will not be paid until all required deliverables have been received during the billing period. Invoices shall be submitted to the COR for review and approval prior to submission to Tungsten.

- 16.1. All invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.
- 16.2. VA's Electronic Invoice Presentment and Payment System- The FSC uses a third-party contractor, Tungsten, to transition vendors from paper to electronic invoice submissions. Please go to this website: <http://www.tungsten-network.com/US/en/veterans-affairs/> to begin submitting electronic invoices, free of charge.
- 16.3. More information on the VA Financial Services Center is available at <http://www.fsc.va.gov/einvoice.asp>.
- 16.4. Vendor e-Invoice Set-Up Information:
- 16.5. Please contact Tungsten at the phone number or email address listed below to begin submitting your electronic invoices to the VA Financial Services Center for payment processing, free of charge. If you have question about the e- invoicing program or Tungsten, please contact the FSC at the phone number or email address listed below:
 - 16.5.1. Tungsten e-Invoice Setup Information: 1-877-489-6135
 - 16.5.2. Tungsten e-Invoice email: VA.Registration@Tungsten-Network.com
 - 16.5.3. FSC e-Invoice Contact Information: 1-877-353-9791
 - 16.5.4. FSC e-invoice email: vafscshd@va.gov

17. ATTACHMENTS:

- 17.1. **Attachment 1: Fresno VA Maintenance Procedures**
- 17.2. **Attachment 2: Quality Standard for Hospital Focal Point flowers/plants (sample photos)**
- 17.3. **Attachment 3: Quality Assurance Surveillance Plan (QASP)**
- 17.4. **Attachment 4: Sample Daily Grounds Checklist**